

23NWLC05512 23NWLC05512

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-02

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Case Number: 23NWLC05512 Hearing Date: July 2, 2026 Dept: Y

23NWLC05512: CAPITAL ONE, N.A. vs MICHAEL D SMITH

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff Capital One, N.A. ("Plaintiff"), including the supporting declaration. The Court takes judicial notice of the Stipulation Agreement; Jurisdiction Retained Under Code of Civil Procedure Section 664.6 signed by Defendant on February 14, 2024 and filed with the Court on February 23, 2024. The Court also takes judicial notice of the Order on Settlement Agreement and Stipulation for Judgment entered by the Court on February 26, 2024. No opposition has been filed by Defendant.

The Court notes that Plaintiff has advised that Defendant has made payments totaling \$3,100.00, leaving an outstanding amount of \$2,638.20 due and owing.

Based on the Stipulation signed by the parties and the moving papers submitted by Plaintiff, Plaintiff's motion is GRANTED.

The Order Dismissing this action pursuant to Code of Civil Procedure section 664.6 is set aside. Judgment is hereby entered in favor of Plaintiff Capital One, N.A. and against Defendant Michael D. Smith for damages in the amount of \$5,738.20, plus costs of \$463.00, less payments of \$3,100.00 for a total judgment of \$3,101.20.

The Proposed Judgment will signed by the Court.

Plaintiff to give notice.